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Case Number: 24TRCV02423 Hearing Date: August 31, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

MICHAEL HAJAR

;

Plaintiff,

vs.

UNICASA NORTH AMERICA

, et al.;

Defendants.

Case

No.:

24TRCV02423

Hearing

Date:

August
31, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1) DEFENDANTS

UNICASA NORTH AMERICA, LLC, DANIEL SALES, DANIEL ZANONATO, AND JAVIER CALVO'S
DEMURRER TO PLAINTIFF MICHAEL HAJAR'S FIRST AMENDED COMPLAINT

(2) DEFENDANTS

UNICASA NORTH AMERICA, LLC, DANIEL SALES, DANIEL ZANONATO, AND JAVIER CALVO'S
MOTION TO STRIKE PORTIONS OF PLAINTIFF MICHAEL HAJAR'S FIRST AMENDED
COMPLAINT

(3) PLAINTIFF

MICHAEL HAJAR'S REQUEST FOR LEAVE TO AMEND

MOVING PARTY: Defendants, Unicasa North
America, LLC, Daniel Sales, Daniel Zanonato, and Javier Calvo

RESPONDING PARTY: Plaintiff, Michael Hajar

(1)

Defendants

Unicasa North America, LLC, Daniel Sales, Daniel Zanonato, and Javier Calvo's Demurrer
to Plaintiff Michael Hajar's First Amended Complaint is SUSTAINED pursuant to Code
of Civil Procedure section 430.10.

(2)

Defendants

Unicasa North America, LLC, Daniel Sales, Daniel Zanonato, and Javier Calvo's
Motion to Strike Portions of Plaintiff Michael Hajar's First Amended Complaint
is DENIED AS MOOT pursuant to Code of Civil Procedure section 435.

(3)

Plaintiff

Michael Hajar is GRANTED twenty (20) days Leave to Amend.

The Court considers the moving papers filed on July 13, 2026, the notices of non-opposition filed on August 10, 2026, the opposition brief filed on August 10, 2026, and the reply brief filed on August 12, 2026.

BACKGROUND

Factual Background

On July 19, 2024, plaintiff Michael Hajar (“Plaintiff”) filed the Complaint against defendants Unicasa North America, Dell Anno Miami, LLC, Daniel Sales, Daniel Zanonato, Javier Calvo, and DOES 1 through 100.

On August 15, 2026, Plaintiff’s counsel and counsel for defendants—Unicasa North America, Daniel Sales, Daniel Zanonato, and Javier Calvo (collectively, “Defendants”)—held a telephonic conference to discuss the alleged deficiencies in the Complaint. (Declaration of Adam M. Weg (“Weg Decl.”), ¶ 4.) During this conversation, Plaintiff’s counsel acknowledged that the Complaint was deficient and indicated that Plaintiff would be filing a First Amended Complaint (“FAC”). (Weg Decl., ¶ 5.)

On September 23, 2025, Defendants’ counsel contacted Plaintiff’s counsel to ascertain whether Plaintiff intended to file a FAC or to dismiss the action with prejudice. (Weg Decl., ¶ 6.) Plaintiff’s counsel responded that the FAC would be filed by October 3, 2025. (Weg Decl., ¶ 6.) However, Plaintiff did not file or serve the FAC by that date. (Weg Decl., ¶ 6.)

Defendants’ counsel repeatedly inquired about the status of the FAC, while Plaintiff’s counsel consistently promised to file it by specific dates that came and went without a FAC being filed. (Weg Decl., ¶ 7.)

On March 24, 2026, Plaintiff filed the First Amended Complaint (“FAC”) against defendants Unicasa

North America, LLC, Daniel Sales, Daniel Zanonato, Javier Calvo, Unicasa Industria de Moveis S/A (“Unicasa Brazil”), and DOES 2 through 100. The FAC includes the following causes of action: (1) Breach of Contract; (2) Intentional Misrepresentation; (3) Concealment; (4) False Promise; (5) Conversion; and (6) Breach of Good Faith & Fair Dealing.

On May 19, 2026, Defendants’ counsel emailed a meet-and-confer letter to Plaintiff’s counsel, outlining the purported deficiencies in the FAC and informing Plaintiff of an anticipated demurrer and motion to strike. (Weg Decl., ¶ 11, Exh. 1.)

On June 1, 2026, the parties’ counsels held a Zoom videoconference to discuss the anticipated demurrer and motion to strike. (Weg Decl., ¶ 12.) Plaintiff declined to amend or dismiss the FAC, asserting that the Court should address the raised arguments. (Weg Decl., ¶ 13.)

From May 19, 2026, to June 8, 2026, Defendants’ counsel continuously sought updates regarding the status of the service of the FAC. (Weg Decl., ¶ 14, Exh. 2.) Plaintiff did not email conformed copies of the FAC to Defendants until June 11, 2026. (Weg Decl., ¶ 15.)

Procedural Background

On July 13, 2026, Defendants filed the demurrer and motion to strike.

On August 10, 2026, Defendants filed notices of non-opposition. On August 10, 2026, Plaintiff filed an opposition brief to the demurrer. On August 12, 2026, Defendants filed a reply brief.

On August 13, 2026, the Court continued the hearing from August 19, 2026, to August 28, 2026. On August 28, 2026, the Court continued the hearing to August 31, 2026.

MEET AND CONFER REQUIREMENT

Before filing a demurrer or

motion to strike, the moving party is required to meet and confer in person, by telephone, or via video conference with the party that filed the pleading that is subject to the motion to determine whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a), 435.5, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41, subd. (a)(2), 435.5, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet-and-confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a)(3).) A determination by the court that the meet and confer process was inadequate shall not be grounds to overrule or sustain a demurrer, or to grant or deny a motion to strike. (Code Civil Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

On May 19, 2026, Defendants' counsel emailed a meet-and-confer letter to Plaintiff's counsel, outlining the purported deficiencies in the FAC and informing Plaintiff of an anticipated demurrer and motion to strike. (Weg Decl., ¶ 11, Exh. 1.)

On June 1, 2026, the parties' counsels held a Zoom videoconference to discuss the anticipated demurrer and motion to strike. (Weg Decl., ¶ 12.) Plaintiff declined to amend or dismiss the FAC, asserting that the Court should address the raised arguments. (Weg Decl., ¶ 13.)

The Court finds that the parties sufficiently met and conferred prior to Defendants filing the demurrer and motion to strike.

UNTIMELY OPPOSITION

"All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing." (Code Civ. Proc., § 1005, subd. (b).)

Given that the demurrer was initially scheduled to be heard on August 19, 2026, Plaintiff was required to file and serve an opposition brief by August 6, 2026. However, Plaintiff submitted the opposition

on August 10, 2026, which was only two court days before Defendants' reply brief was due.

Plaintiff's counsel

explains, "With respect to the current Demurrer and Motion to Strike and Defendants' Notice of Non-Opposition filed today, August 10, 2026, I had calendared the deadline for the Demurrer and Motion to Strike for 30 calendar days after it was electronically served on me on July 13, 2026 as if it were a response to a Complaint, for August 12, 2026.

Coincidentally, when I commenced a thorough reading of Defendants' Demurrer so that I can draft my response, I realized that the unilaterally chosen date for the Demurrer hearing was on August 19, 2026, and that my papers were actually due on August 6, 2026, given the hearing date." (Declaration of Gia Skoumbis ("Skoumbis Decl."), ¶ 4.) Plaintiff's counsel

further asserts that "I take full responsibility for this error on my part and should have noted the calendaring conflict and due date error sooner. I am working on this matter pro bono and am handling it separately from my work for a private firm that has no association with this matter. I, therefore, do not have access to the paralegal services, including calendaring, word processing support and other amenities that I would otherwise have the benefit of." (Skoumbis Decl., ¶ 6.)

Typically,

the Court would exercise its discretion to consider an opposition brief that is filed a couple of days late, particularly when the moving party submits a reply brief. (See Cal. Rules of Court, rule 3.1300(d).) In this instance, however,

Plaintiff's failure to file and serve a timely opposition brief compelled Defendants to draft and file a reply brief within a limited timeframe of two days. The Court agrees that it would be prejudicial to consider an opposition brief that necessitates a party to respond under such compressed circumstances.

(Reply, p. 1:21.) This often results in missed arguments or the submission of a deficient responsive pleading. Consequently, the Court declines to consider Plaintiff's opposition brief.

DEMURRER

Legal Standard

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

Discussion

First Cause of Action – Breach of Contract

Defendants demur to Plaintiff's first cause of action for breach of contract on the following grounds: (1) the contract lacks essential material terms; (2) Plaintiff failed to perform his obligations under the contract; and (3) the claim is barred by the statute of limitations. (Dem., pp. 6:3-8, 14-8:5, 12:27-13:15.) The Court agrees with the second argument and will refrain from addressing the merits of the remaining two arguments.

"[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2)

plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

"It is elementary a plaintiff

suing for breach of contract must prove it has performed all conditions on its part or that it was excused from performance."

(Consolidated World Investments, Inc. v. Lido Preferred Ltd.

(1992) 9 Cal.App.4th 373, 380, citing Reichert v. General Ins. Co. of America (1968) 68 Cal.2d 822, 830.)

"This requirement can be satisfied by allegations in general terms. It is sufficient for a plaintiff to simply allege that he has 'duly performed all the conditions on his part.' (Code of Civ. Proc., § 457.) However, this rule is subject to two important

caveats[.] ¶ First, where the condition is an event, as

distinguished from an act to be performed by the plaintiff, a specific

allegation of the happening of the condition is a necessary part of pleading

the defendant's breach. [Citations.] Second, general pleadings are controlled by specific allegations. Thus, a general

allegation of due performance will not suffice if the plaintiff also sets forth

what has actually occurred, and such specific facts do not constitute due

performance. [Citation.]" (Careau & Co. v. Security Pacific

Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1389-1390.)

On April 1, 2026, "CALVO

presented UNICASA's pricing via a 'Cabinetry Quote Order' n the amount of

\$69,200 for the delivery and installation of the cabinetry for the Designated

Rooms (the 'Contract'). The Contract is

attached hereto as Exhibit '1.' The

Cabinetry Quote Order contained the Dell Anno Insignia and directed payment to

Unicasa/Dell Anno West Coast." (FAC, ¶

22.) The Cabinetry Quote Order specifies

that Plaintiff is responsible for (1) \$64,200.00 for the cabinets, (2)

\$5,000.00 for installation, and (3) an estimated \$3,500.00 for shipping the

cabinetry via air freight. (FAC, Exh.

1.)

Plaintiff asserts that he "fully

performed its obligation under the agreement between the parties by tendering

full payment for the Cabinetry." (FAC, ¶

72.) However, Plaintiff's own assertions

contradict this claim.

“On April 2, 2019, Plaintiff agreed to move forward and wired funds directly to the UNICASA BRAZIL in the amount of \$57,262.00.” (FAC, ¶ 25.) Plaintiff does not indicate that he paid the remaining balance of \$6,938.00, nor does he provide an explanation for his failure to do so. Additionally, Plaintiff does not assert that he paid the estimated shipping cost of \$3,500.00 or that he was exempt from this payment.

Consequently, Plaintiff's claim of having fully performed his obligations under the agreement stands in conflict with his own specific allegations, demonstrating that he did not fulfill his obligations.

As such, Defendants' demurrer with respect to the first cause of action for breach of contract is SUSTAINED.

Second Cause of Action – Intentional Misrepresentation

Defendants demur to Plaintiff's second cause of action for intentional misrepresentation on the following grounds: (1) Plaintiff has not satisfied the heightened pleading requirements for claims of fraud; (2) the core of Plaintiff's fraud claim is essentially a reiteration of the alleged breach of contract; (3) a majority of the alleged misrepresentations are not actionable as they relate to future conduct; and (4) the claim is barred by the statute of limitations. (Dem., pp. 8:6-9:17, 13:16-14:19.) The Court agrees that the statute of limitations bars this claim and will refrain from addressing the merits of the remaining three arguments.

“Within three years: ... An action for relief on the grounds of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc., § 338, subd. (d).) “The discovery rule only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action. The discovery rule does not encourage dilatory tactics because plaintiffs are charged with presumptive knowledge of an injury if they have information of circumstances to put [them] on inquiry or if they have the opportunity to obtain knowledge from sources open to [their]

investigation. [Citation.]” (Fox v. Ethicon Endo-Surgery, Inc.

(2005) 35 Cal.4th 797, 807-808, internal citation and quotations omitted.) “In order to rely on the discovery rule for delayed accrual of a cause of action, [a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.” (Id. at p. 808.)

Plaintiff alleges the

following misrepresentations: (1) “The UNICASA ENTITIES’ representations, via its authorized agent and representative, Mr. Merigo, that measurements would be taken to account for any deviation in the written plans so that the cabinetry would be the correct measurement;” (2) “CALVO’s representation that the Cabinetry could be delivered TO Plaintiff’s Residence with the assurances that the cabinetry would be of the top quality oak wood;” (3) “CALVO’s representation that the logistics company was owed \$4,800 and requesting \$3,400 from Plaintiff which was never discussed and not rightfully owed;” (4) “CALVO’s representation that the warehouse required a fee of \$6,300 to be paid in cash to CALVO for 7 months storage fees in order to release Plaintiff’s Cabinetry when no storage fees were actually owed;” (5) “ZANONATO’s representation that UNICASA would take care of the installation of the Cabinetry and resolve the concerns Plaintiff had about CALVO;” (6) “ZANONATO and SALES’S representations that they would rectify the deficiencies in the Cabinetry and determine acceptable solutions for Plaintiff[.]” and (7) “SALES’S representation that UNICASA was not responsible for the WC Action of Saul Ruiz, who was hired by CALVO, an authorized agent and representative of UNICASA and Dell Anno.” (FAC, ¶ 81(a)-(g).)

Plaintiff contends that

“[i]t was only after Plaintiff discovered SALES’s emails in late July of 2021 that he discovered Defendants’ conspiratorial scheme to defraud him through the aforementioned misrepresentations.”

(FAC, ¶ 87.) However, the Court finds

that, with reasonable diligence, Plaintiff would have uncovered this information on July 6, 2021.

Plaintiff alleges that: “On

or about July 22, 2021, after Plaintiff’s return from visiting his ailing family member, and not having heard from SALES or anyone else at UNICASA, Plaintiff searched his email account and determined that SALES had in fact responded to Plaintiff’s email on July 6, 2021, and again on July 20,

2021 to follow up on his prior email. The email correspondence was inadvertently placed in Plaintiff's SPAM folder."

(FAC, ¶ 55, emphasis added.) "The

email from SALES, as the agent and representative of UNICASA and Dell Anno, included paragraphs of legalese, wherein SALES threatened that no work to rectify the multitude of issues with UNICASA's cabinetry would be done, unless Plaintiff would agree to hold UNICASA harmless in the WC Action. After having held out CALVO as an employee and agent of UNICASA, UNICASA withdrew from this position and attempted then to argue that CALVO was an independent supplier and that the company was not responsible for the workers hired by CALVO. This statement was directly counter to UNICASA's actions prior, and to this day, CALVO is an interior designer for UNICASA (Dell Anno) in its Pasadena showroom."

(FAC, ¶ 56.)

Here, Plaintiff received an email on July 6, 2021, which contained the alleged misrepresentation that ultimately alerted Plaintiff to Defendants' purported fraud. Although Plaintiff contends that he did not view the email until July 22, 2021, due to it being in his SPAM folder, he could have reviewed the email on July 6, 2021, with reasonable diligence. Consequently, Plaintiff was on notice by July 6, 2021, which caused the statute of limitations for this claim to begin running on that date, expiring on July 6, 2024. The initial complaint was filed on July 19, 2024, just days after the expiration of the statute of limitations.

As such, Defendants' demurrer with respect to the second cause of action for intentional misrepresentation is SUSTAINED.

Third Cause of Action – Concealment

Defendants demur to Plaintiff's third cause of action for concealment on the following grounds: (1) Plaintiff has not satisfied the heightened pleading requirements for claims of fraud; (2) the core of Plaintiff's concealment claim is essentially a reiteration of the alleged breach of contract; (3) a majority of the alleged concealments are not actionable as they relate to future conduct; and (4) the claim is barred by the statute of limitations. (Dem., pp. 8:6-9:17, 13:16-14:19.) The Court agrees that the statute of limitations bars this claim and will refrain from addressing the merits of the remaining three arguments.

"Within three years: ... An

action for relief on the grounds of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Code Civ. Proc., § 338, subd. (d).) "The discovery rule only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action. The discovery rule does not encourage dilatory tactics because plaintiffs are charged with presumptive knowledge of an injury if they have information of circumstances to put [them] on inquiry or if they have the opportunity to obtain knowledge from sources open to [their] investigation. [Citation.]" (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 807-808, internal citation and quotations omitted.) "In order to rely on the discovery rule for delayed accrual of a cause of action, [a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence." (Id. at p. 808.)

Plaintiff alleges the

following concealed facts: "At all times herein mentioned, Defendant had a duty to disclose the true facts that Plaintiff did not know; specifically, that Defendant would not timely or accurately deliver and install the Cabinetry; conceal the storage location of the Cabinetry, and that Defendants would not recompense or take responsibility for the WC Action commenced by Saul Ruiz, a worker hired by UNICASA, and instead shift responsibility and claim that CALVO was not an employee of the UNICASA ENTITY but an 'independent supplier.'

It was these facts, among others, which were not readily accessible to the Plaintiff." (FAC, ¶ 93.) "At all times herein mentioned, Plaintiff was unaware of the true facts concerning Defendants' fraudulent intent, nor was it reasonably able to discover such facts, particularly given the stature and reputation of a company like the UNICASA ENTITY and Dell Anno. Upon discovery of SALES's attempt to extort Plaintiff into holding UNICASA and Dell Anno harmless for their own hired workers' claims, it became clear that all Defendants were part of the same conspiratorial scheme where in UNICASA and Dell Anno condoned and ratified the concealment of CALVO, and ZANONATO. Had Plaintiff known or been made aware of the concealed and/or suppressed facts, Plaintiff would not have entered into the agreement with the Defendants." (FAC, ¶ 96.)

Again, Plaintiff references

emails connected to the workers' compensation case, which included the alleged misrepresentation/concealed fact

that ultimately alerted Plaintiff to Defendants' purported fraud. Given that Plaintiff could have reasonably discovered the first email on

July 6, 2021, the statute of limitations expired on July 6, 2024, thereby barring Plaintiff's claim.

As such, Defendants' demurrer with respect to the third cause of action for concealment is SUSTAINED.

Fourth Cause of Action – False Promise

Defendants demur to Plaintiff's

fourth cause of action for false promise on the following grounds: (1) the core of Plaintiff's false promise claim is essentially a reiteration of the alleged breach of contract; (2) the promises are vague; and (3) the claim is barred by the statute of limitations. (Dem., pp.

9:18-10:15, 13:16-14:19.) The Court

agrees that the statute of limitations bars this claim and will refrain from addressing the merits of the remaining two arguments.

"Within three years: ... An

action for relief on the grounds of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Code Civ. Proc., § 338, subd. (d).) "The discovery rule only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action. The discovery rule does not encourage dilatory tactics because plaintiffs are charged with presumptive knowledge of an injury if they have information of circumstances to put [them] on inquiry or if they have the opportunity to obtain knowledge from sources open to [their] investigation. [Citation.]" (Fox v. Ethicon Endo-Surgery, Inc.

(2005) 35 Cal.4th 797, 807-808, internal citation and quotations omitted.) "In order to rely on the discovery rule for delayed accrual of a cause of action, [a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence." (Id. at p. 808.)

Plaintiff alleges: "Defendants, and each of them, through the conspiratorial scheme delineated in Paragraphs 63-67 above, made false promises that they did not intend to perform at the time these promises were made. These promises include but are not limited to:

¶ (a) The UNICASA ENTITY's

promises, via its authorized agent and representative, Mr. Merigo, that measurements would be taken to account for any deviation in the written plans so that the cabinetry would be the correct measurement, only to discover much later when Plaintiff was working with the UNICASA ENTITY to rectify their multiple errors, that they were not willing or able to provide cabinetry in the dimensions originally requested by Plaintiff in the original dimensions provided to UNICASA NA - and unilaterally altered the dimensions and finishes / colors of numerous items and failed to provide the hardware and glass shelving, and altered the mirrored/aluminum framed master wardrobe doors to a completely different style Contract; ¶ (b) CALVO's promise that the Cabinetry could be delivered in 30 days if Plaintiff wired his fully payment to UNICASA BRAZIL, where CALVO likely had foreknowledge of shipping delays due to an alleged new line of products being produced at the facilities in Brazil; ¶ (c) ZANONATO's promises that UNICASA would take care of the installation of the Cabinetry and resolve the concerns Plaintiff had about CALVO; (d) ZANONATO and SALES'S representations that they would rectify the deficiencies in the Cabinetry and determine acceptable solutions for Plaintiff which was rescinded when SALES wished to avoid responsibility for CALVO'S employee's false claims against Plaintiff." (FAC, ¶ 100.)

Again, the most recent

alleged false claim pertains to a workers' compensation case, which Plaintiff contends ultimately brought to light Defendants' purported fraudulent behavior. (FAC, ¶¶ 87, 96, 99, 100.) Given that Plaintiff could have reasonably discovered the relevant email related to the workers' compensation case on July 6, 2021, the statute of limitations expired on July 6, 2024, thereby barring Plaintiff's claim.

As such, the Defendants'

demurrer with respect to the fourth cause of action for false promise is SUSTAINED.

Fifth Cause of Action – Violation of
Business and Professions Code Section 17200

Defendants demur to Plaintiff's

fifth cause of action for violation of Business and Professions Code section 17200 on the following grounds: (1) Plaintiff does not allege unfair business practices with the requisite level of particularity; (2) the allegations do not

adequately demonstrate the existence of an unfair business practice; and (3) the claim is barred by the statute of limitations.

(Dem., pp. 10:16-12:4, 14:20-26.)

The Court agrees that Plaintiff does not allege unfair business practices with the requisite level of particularity and will refrain from addressing the merits of the remaining two arguments.

To state a cause of action

for unfair competition ("UCL"), a plaintiff must establish that the defendant engaged in "unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising." (Bus. & Prof. Code, § 17200, emphasis added.) This section establishes three

types of unfair competition, prohibiting "practices that are either 'unfair,' or 'unlawful,' or 'fraudulent.'" (Pastoria

v. Nationwide Ins. (2003) 112 Cal.App.4th 1490, 1496.) Thus, "[a]n act or practice may be actionable as 'unfair' under the unfair competition law even if it is not 'unlawful.'" (Chavez v. Whirlpool Corp. (2001) 93 Cal.App.4th 363, 374.) "A 'business act or practice' is 'unlawful' under the unfair competition law if it violates a rule contained in some other state or federal statute." (Sandoz

Inc. v. Amgen Inc. (2017) 582 U.S. 1, 12, citing Rose v. Bank of America, N.A. (2013) 57 Cal.4th 390, 396.)

"A plaintiff alleging unfair business practices under these statutes must state with reasonable particularity the facts supporting the statutory elements of the violation." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 619.)

Plaintiff alleges: "Plaintiff

was directly injured by the conduct of UNICASA/Dell Anno. As set forth herein, Defendant's conduct in failing to act in accordance with its contractual obligations makes it more difficult for other law-abiding business ventures and individuals within their industry to fairly compete against them. Plaintiff is informed and believes and thereon alleges that Defendants UNICASA/ Dell Anno, and each of them, via its authorized representatives, ZANONATO, SALES and CALVO, have engaged, and continue to engage in unfair business practices." (FAC, ¶ 102.)

However, the only unfair business practices alleged were committed by an unspecified "Defendant."

Plaintiff further claims, "Defendant

engaged in unfair business practice by grossly misrepresenting the type and nature of services Defendant could provide to the Plaintiff, as well as Defendant's

ability to complete the agreed upon transactions. Furthermore, Defendant failed to alert or supply notice to the Plaintiff that

Defendant would fail to complete the transaction as advertised. Such business practices are unethical and dishonest because, among

other things, it deprived Plaintiff of insuring that there was a mutual understanding between Plaintiff and Defendants as to the nature of the transaction, the performance of the transaction, what was to be transferred, what was to be sold, and the total amount to be charged/accepted for the performance of such transfer." (FAC, ¶ 103.)

The identity of the

defendant allegedly engaged in unfair business practices remains ambiguous. While the Court acknowledges that the term "Defendant"

may refer to "UNICASA/Dell Anno," it is unable to make a definitive

determination without a clear definition of "Defendant" or specific allegations

delineating which actions were taken by which party. Furthermore, the existence of both UNICASA

NORTH AMERICA, LLC and UNICASA BRAZIL adds to the uncertainty regarding which

entity is being referenced as "UNICASA/Dell Anno." (FAC, ¶¶ 2, 6.) Consequently, Plaintiff does not allege unfair business practices with

reasonable particularity.

As such, the Defendants'

demurrer with respect to the fifth cause of action for violation of Business

and Professions Code section 17200 is SUSTAINED.

Sixth Cause of Action – Conversion

Defendants demur to Plaintiff's

sixth cause of action for conversion on the following grounds: (1) Plaintiff

does not specifically identify the amount of money converted; and (2) the claim

is barred by the statute of limitations.

(Dem., pp. 12:5-24, 15:1-11.) The

Court agrees that Plaintiff does not specifically identify the amount of money

converted and will refrain from addressing the merits of the remaining

argument.

"A plaintiff must

specifically identify the amount of money converted, not that a specific,

identifiable amount of money has been entrusted to the defendant." (Welco Electronics, Inc. v. Mora

(2014) 223 Cal.App.4th 202, 216.)

“The funds withheld by UNICASA NA, UNICASA BRAZIL is a sum capable of identification.” (FAC, ¶ 112.)

“Plaintiff has been damaged by Defendants’ conversion, in an amount to be proven at trial, in addition to interest, costs, attorney’s fees and whatever other relief this Court will provide.”

(FAC, ¶ 113.)

Although Plaintiff lists various amounts of money paid to Defendants, Plaintiff does not specify a particular sum that he claims was converted.

(FAC, ¶¶ 106-109.)

As such, the Defendants’ demurrer with respect to the sixth cause of action for conversion is SUSTAINED.

Seventh Cause of Action – Breach of Good Faith & Fair Dealing

Defendants demur to Plaintiff’s seventh cause of action for breach of good faith & fair dealing on the following grounds: (1) the contract lacks essential material terms; (2) Plaintiff failed to perform his obligations under the contract; and (3) the claim is barred by the statute of limitations.

(Dem., pp. 6:8-8:5, 12:27-13:15.)

The Court agrees with the second argument and will refrain from addressing the merits of the remaining two arguments.

“Under California law, to allege a claim for breach of the covenant of good faith and fair dealing, a plaintiff must allege the following elements: (1) the plaintiff and the defendant entered into a contract; (2) the plaintiff did all or substantively all of the things that the contract required him to do or that he was excused from having to do so; (3) all conditions required for the defendant’s performance had occurred; (4) the defendant unfairly interfered with the plaintiff’s right to receive the benefits of the contract; and (5) the defendant’s conduct harmed the plaintiff.” (Merced Irr. Distr. v. County of Mariposa (E.D.Cal. 2013) 941 F.Supp.2d 1237, 1280.)

As discussed above with

respect to the first cause of action, the Court SUSTAINS Defendants' demurrer to the seventh cause of action for breach of good faith & fair dealing.

MOTION TO STRIKE

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b), emphasis added.) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or is a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Discussion

Defendants seek to strike the following: (1) references to punitive and exemplary damages contained in paragraphs 89 and 98, as well as on page 22, line 9; and (2) requests for attorneys' fees found in paragraphs 88 and 104, as well as on page 22, lines 2 and 8. (Notice of MTS, pp. 1:2-2:6.) However, the Court notes that Defendants' request to strike is rendered MOOT due to the sustainment of the demurrer pertaining to all causes of action.

ORDERS

1) Defendants

Unicasa North America, LLC, Daniel Sales, Daniel Zanonato, and Javier Calvo's
Demurrer to Plaintiff Michael Hajar's First Amended Complaint is SUSTAINED.

2) Defendants

Unicasa North America, LLC, Daniel Sales, Daniel Zanonato, and Javier Calvo's
Motion to Strike Portions of Plaintiff Michael Hajar's First Amended Complaint
is DENIED AS MOOT.

3) Plaintiff

Michael Hajar is GRANTED twenty (20) days Leave to Amend.

4) Defendants

are ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 31, 2026

Tamara
Hall

Judge
of the Superior Court